

Pratibha Sharma W/O Shri Vikas Sharma ... vs Vikas Sharma S/O Late Shri Satyanarayan ... on 13 March, 2023

Author: Sameer Jain

Bench: Sameer Jain

[2023/RJJP/004028]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 225/2019

Pratibha Sharma W/o Shri Vikas Sharma D/o Shri Kamalkishor Sharma, Aged About 36 Years, B/c Brahmin, R/o Viratnagar, Ward No. 4, New Bus Stand, Tehsil Viratnagar, Jaipur Presently R/o Village Letkabass, Tehsil Shahpura, District Jaipur (Raj)

----Petitioner

Versus

Vikas Sharma S/o Late Shri Satyanarayan Sharma, Aged About 34 Years, B/c Brahmin, R/o Viratnagar, Ward No. 4, New Bus Stand, Tehsil Viratnagar, Jaipur Presently R/o Plot No. 159A, Patrakar Colony Mansarovar, Jaipur (Raj)

----Respondent

For Petitioner(s)	:	Smt. Pratibha Sharma
For Respondent(s)	:	None

HON'BLE MR. JUSTICE SAMEER JAIN

Order

13/03/2023

1. The applicant-wife is present in person. None present on behalf of the respondent. The matter pertains to matrimonial dispute and the law mandates that such cases should be disposed in a time bound manner.

2. Service in the matter is complete, yet no one is appearing on behalf of the respondent on account of the ongoing lawyers' strike. However, as per the judgment of Apex Court in Harish Uppal Vs. Union of India (UOI) and Ors. reported in (2003) 2 SCC 45, this court is constrained to take up the matter for final disposal as per the pleadings, as the service in the matter is complete.

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3. This transfer application has been filed by the applicant-wife under Section 24 of the Code of Civil Procedure seeking transfer of Application No. 479/2019 titled as Vikas Sharma Vs. Smt. Pratibha Sharma filed by the non-applicant- husband under Section 13 of the Hindu Marriage Act, 1955 read with Section 7 of Family Court Act, 1984 from Family Court No. 2, Jaipur Metropolitan Jaipur to the Family court, Additional Chief Judicial Magistrate, Shahpura, District Jaipur.

4. Considering the fact that the applicant-wife is presently residing with her aged parents in Shahpura; that the applicant- wife does not have the infrastructural support, in terms of family members, who can accompany her to court proceedings, pending in District Jaipur; that multiple proceedings arising out of the marriage are pending adjudication in District Shahpura, including case(s) under Section 125 of Cr.P.C. and Section 12 of Protection of Women from Domestic Violence Act; that the applicant-wife is financially deprived with no independent source of income; that the applicant-wife has the responsibility to look after her minor daughter; considering the provisions of Section 19 of the Hindu Marriage Act and relying upon the judgments of the Apex Court in N.C.V. Aishwarya vs. A.S. Saravana Karthik Sha: Civil Appeal No. 4894/2022, Sumita Singh Vs. Kumar Sanjay & Ors.: AIR 2002 SC 396, Rajni Kishor Pardeshi Vs. Kishor Babulal Pardeshi: (2005) 12 SCC 237, and Vaishali Shridhar Jagtap Vs. Shridhar Vishwanath Jagtap: AIR 2016 SC 3584, this Court deems it just and proper to transfer the Application No. 479/2019 from Family Court No. 2, Jaipur Metropolitan Jaipur to [2023/RJJP/004028] (3 of 3) [CTA-225/2019] the Family Court, Additional Chief Judicial Magistrate, Shahpura, District Jaipur.

5. Accordingly, the present transfer application is allowed. The Application No. 479/2019 be transferred from Family Court No. 2, Jaipur Metropolitan Jaipur to the concerned Family court/Additional Chief Judicial Magistrate, Shahpura, District Jaipur.

6. Both parties are directed to appear before the transferee court on 13.04.2023. By that time, the record of the case be transmitted to the transferee Court by the Court concerned. It is made clear that if any of the parties would not appear on the date fixed by this Court, the transferee court would be at liberty to proceed in accordance with law.

7. It is expected that the transferee court shall dispose of the matter as expeditiously as possible; preferably within the prescribed time period as stipulated in the Act.

8. Stay application and other pending applications, if any, stand disposed of.

(SAMEER JAIN),J Pooja /1 Powered by TCPDF (www.tcpdf.org)